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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

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PART IV (A) - PROVINCIAL COUNCILS

Provincial Councils Notifications

SOUTHERN PROVINCIAL COUNCIL

RULES UNDER THE REGISTRATION OF TRADING PLACES STATUTES NO. 04 OF 2019 UNDER THE SOUTHERN PROVINCIAL COUNCIL

I, UDALAMATHTHA GAMAGE DAYAWANSHA ARIYATHILAKA Minister of Agriculture, Agrarian Development, Irrigation, Water Supplying and Drainage, Food Suppling & Distribution and Trade & Cooperative Development of Southern Provincial Council hereby impose the following rules in terms of the sec.17 under the Registration of Trading Places Statutes No. 04 of 2019 under the Southern Provincial Council. These rules shall be effective on the day published in the *Gazette*.

UDALAMATHTHA GAMAGE DAYAWANSHA ARIYATHILAKA,
Minister of Agriculture, Agrarian Development, Irrigation,
Water Supplying and Drainage, Food Suppling & Distribution and
Trade & Cooperative Development of Southern Provincial Council.

4th Floor, Dakshinapaya, Labuduwa, Galle.

At the Minister's office, Ministry of Agriculture, Southern Province,
On 09th April 2019.

Rules

Rules formulated in terms of section 19 under the Trading Places Registration Precept of Southern Province No. 4 of 2019 in connection with the facts mentioned in the sections 2(3) and 18 (1).

1. Each and every business institute or a person of such related under the Southern Province should provide a written declaration as per the specified specimen including following details by handing over or referring under the registered post to the registrar's office in the area of which said business institute is located schedule to be registered their business institutes under the Southern Provincial Council in accordance with Trading Places Registration precept locations in Southern Province No. 4 of 2019 .

- (a) The business name under which the said business is perform.
- (b) Nature of the business.
- (c) The Principal Place of the Business.
- (d) If any branch, stores, places to store or group of stores of such are maintain, address of such each location.
- (e) The date of commencement of the Business.
- (f) In an event of the business which is performed by a person or (any partner not established as a cooperation) partners of the business institutes are performing the said business place, following information of such persons or each partner thereof,

- (i) Full name used at present
- (ii) If there is any previous name used, such full names
- (iii) Citizenship
- (iv) National Identity Card Number

- (g) In an event that the business is performed by a business institute which is incorporated by a corporation or by each and every partner, following information on each of the corporation aforesaid.

- (i) Incorporated name
- (ii) If the incorporation is executed under any such law/laws
- (iii) If any registration number of such in corporation is availed, such number
- (iv) registered address or the principal business place

- (h) If any other business is performed under different business name, the said business name
- (i) Each and every person or institute intends to be initiated the business such should be presented as request in accordance with the specimen form fulfilled with effect from 14 days period since the commencement of the business or during a specified period permitted by the registrar.

The said application

- (i) In case of a person by himself or herself
- (ii) In case of a cooperation, by two directions or one director and by the secretary thereof
- (iii) In case of a business institute each and every partner should have signed.

2. The specimen forms that should be used in compliance with the issuance of certificate or declaration on behalf of each activity undermentioned in terms of the section 2(3) under Trading Places Registration Precept of Southern Province No. 4 of 2019 are stipulated as follows,

- 2.1 The application for the issuance of Certificate of Registration of Individual Business Name should be compliance with specimen form No. R1 Southern Province Business Names depicted undermentioned schedule 1.
- 2.2 The application for the issuance of Certificate of Registration of Firm should be compliance with specimen form No. R.2 Southern Province Business Names depicted undermentioned schedule 2.
- 2.3 Certificate of Registration of Individual Business Name should be compliance with specimen form No. R.3 Southern Province Business Names depicted undermentioned schedule 3.
- 2.4 Certificate of Registration of Firm Business Name should be compliance with specimen form No. R.4 Southern Province Business Names depicted undermentioned schedule 4.

- 2.5 Application for the issuance of Certificate on the declaration of alterations should be compliance with the R.5 Southern Province Business Names depicted undermentioned schedule 5.
- 2.6 The application for inspecting the particulars relevant to the registration of business name/ to obtain a certified copy of such should be compliance with specimen form No. R 6 Southern Province Business Names depicted undermentioned schedule 6.
- 2.7 The application on ceasing a business should be compliance with the R 7 Southern Province Business Names depicted undermentioned schedule 7.
- 2.8 Certificate for notification of the removal of the business name by the register should be compliance with the R8 Southern Province Business Names depicted undermentioned schedule 8.
03. The registrar is vested with the authority to obtain the following particulars at the occasions such as the registration of any business name, alteration or cancellation in terms of section 2(3) of Trading Name Registration Precept of Southern Province No. 4 of 2019.
 - (i) A certified copy of the deed of transfer/leasing agreement/ tenant agreement by which the obligation is assailed as a confirmation, the original of the first copy should also be presented along with this (this shall be presented after the conference)
 - (ii) Photocopy of the National Identity Card
 - (iii) If the business place is performed upon the exclusive consent of the owner of the land/building located, the particulars confirming the letter of consent of him/her and the identity of the owner.
 - (iv) Grama Niladhari's report performing the business/ ceasing the business (this must be countersigned by the Divisional Secretariat)
 - (v) A copy of the trade license (Issued by the relevant urban council/ Pradeshiya Sabha)
 - (vi) A copy of the firm agreement, if any
 - (vii) Other particulars that could be called occasionally by the registrar if any.
04. Fees should be recovered as per the amounts depicted in front of each in respect of the issuance of each certificate or declaration on behalf of each activity mentioned below in terms of the sec. 18(1) of statute on registration of the trades in Southern Province No. 4 of 2019.

When the registration is done in respect of the trades, the large amount of either capital or turnover should be considered.

<i>Activity</i>	<i>Fees</i>
4.1 To issue a certificate on registration of trade individual business or firm.	
1. Business equal or above Rs. 250,000	Rs. 2,500.00
2. Business equal or above Rs. 100,000	Rs. 1,500.00
3. Business equal or above Rs. 50,000	Rs. 1,000.00
4. Business below Rs.50,000	Rs. 500.00
4.2 To issue revision declaration presented under sec. 5	
1. Business equal or above Rs. 250,000	Rs. 1,000.00
2. Business below Rs. 250,000	Rs. 750.00
4.3 Application fee for inspecting particulars	
1. Business equal or above Rs. 250,000	Rs. 500.00
2. Business below Rs. 250,000	Rs. 250.00
4.4 Fee to obtain certified copy of registration	
1. Business equal or above Rs. 250,000	Rs. 1,000.00
2. Business below Rs. 250,000	Rs. 750.00
4.5 Recovery lapsed Fees on Registration of Business	

An application should be supplied as per the specimen depicted under the sec.2 herein in order to be registered within 30 days followed by the initiation of the business. Accordingly, lapsed fees should be recovered at the occasions in which the said 30 days period is exceeded.

An amount similar to business registration fee and a lapsed penalty fee of Rs. 2,500 in addition should be paid during 31 - 90 days from the initiation of the business.

Businesses which have already lapsed more than 91 days shall not be registered whatsoever.









































